

Court No. - 38

Case :- WRIT - C No. - 7340 of 2019

Petitioner :- M/S R.B. Edibells Pvt. Ltd.

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ashok Kumar Singh

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyaya,J.

Hon'ble Jayant Banerji,J.

Heard Shri Ashok Kumar Singh, learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel appearing for the respondent no.4.

By means of this writ petition, the petitioner has come to this Court with a grievance that the petitioner may be allowed installment in payment of electricity dues, which have been demanded by the respondents for a sum of Rs.12,67,958/-.

Learned counsel for the petitioner submits that under clause 6.14 of the Electricity Supply Code, 2005, there is a provision which entitles the licensee to charge the electricity dues in installments if a consumer can prove that he is in financial distress. The petitioner accepts the liability.

The writ petition is, accordingly, disposed of with the observation that the petitioner may move an application before the respondent no.2-Executive Engineer and the respondent no.2 will consider the claim of the petitioner in accordance with clause 6.14 of the Electricity Supply Code. Such a decision will be taken as far as possible within one month without unnecessary delay.

Order Date :- 5.3.2019

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(Jayant Banerji, J.) (Abhinava Upadhyaya, J.)